

**ICICI BANK LIMITED (ALL-INDIA) STANDARD TERMS- UNSECURED
PERSONAL LOAN &
BUSINESS INSTALLMENT LOANS**

Effective Date: December 13, 2024

1. INTRODUCTION

These Standard Terms and Conditions shall govern the Facility applied for and availed by the Borrower from ICICI Bank Limited ("ICICI Bank") through: (a) submission of the Application Form on its official website available at www.icicibank.com ("Website"); or ICICI Bank's mobile-based application or any other digital platform made available by ICICI Bank, whether through an arrangement with a third party or otherwise ("Portal"/"Platform"); or (b) submission of the Application Form by the Borrower at any branch of ICICI Bank. These Standard Terms and Conditions shall be read and construed as part of the Application Form.

By applying for the Facility/Loan through submission of physical Application Form or through the Portal by clicking on 'Accept'/'Agree'/'Agree and Proceed' icon/button; and/or by submitting onetime password received on the Borrower's registered mobile number and/or by affixing electronic signature or digital signature, the Borrower confirms that:

- (a) the Borrower has authorized ICICI Bank to access / receive the information provided by the Borrower from the Goods and Services Tax Network (GSTN), income tax authorities, credit bureaus, Unique Identification Authority of India (UIDAI) or other similar system for the purposes of completing the Application Form; and
- (b) the Borrower has read, understood and agrees to the Key Fact Statement (KFS) / Most Important Terms and Conditions (MITCs) and Standard Terms and Conditions governing the Facility displayed on the Portal to the Borrower at the time of applying for the Facility.

In case of any inconsistency between the Application Form, KFS/ MITCs and the Standard Terms, the terms of the Facility set forth in the KFS/MITCs of the Facility shall prevail.

Capitalised terms used herein shall have their meaning in the 'Definitions' section hereunder or in these Standard Terms and Conditions.

2. DEFINITIONS

In these Standard Terms and Conditions, the following expressions shall, if used with initial capitalization, have the meanings set out below:

- (l) "Application Form" means the preliminary application form (if any), credit facility application form(s) *(whether generated/submitted digitally through*

the Portal or submitted physically) and includes all information submitted by the Borrower to ICICI Bank for applying for and availing the Facility.

- (II) "Borrower" shall mean and refer to, jointly and severally, the applicant and co-applicants (if any) who has/ have been sanctioned and granted the Facility by ICICI Bank based on the Application Form submitted by such applicants and co-applicants to ICICI Bank for availing of the Facility and includes depending upon the nature of the Borrower (a) its successors and permitted assigns, if the Borrower is a company within the meaning of the Companies Act 2013 or (b) a society registered under the applicable laws relating to societies; (c) any or each of the partners and their survivor(s) or the partner(s) from time to time and their respective heirs, legal representatives, executors, administrators and permitted assigns, if the Borrower is partnership firm within the meaning of the Indian Partnership Act, 1932 or a Limited Liability Partnership Act, 2008 (LLP) ; (d) his / her heirs, legal representatives, executors, administrators and permitted assigns, if the Borrower is an individual and/or carrying on business as a sole proprietary concern; (e) the karta and any or each of the adult members of the Hindu Undivided Family (HUF) and their survivor(s) and his/ her / their respective heirs, legal representatives, executors, administrators and permitted assigns, if the Borrower is a joint HUF; and (f) the trustee(s) for the time being thereof and the successors and permitted assigns of the trust/trustees, if the Borrower is a trust.
- (III) "Borrower's Dues" shall mean and include the outstanding principal amount of the Facility, interest on the Facility, Penal Charges, fees, costs, stamp duty, all applicable charges and liabilities of any kind whatsoever payable by Borrower to ICICI Bank in connection with the Facility and all other sums whatsoever payable by the Borrower in accordance with the Transaction Documents.
- (IV) "Business Day" means a day on which ICICI Bank's branches are open for normal business transactions.
- (V) "Due Date" shall mean each such date on which any amount in respect of the Borrower's Dues, fall due as specified in the Application Form or KFS/MITC or such other communication as may be made by ICICI Bank to the Borrower.
- (VI) "Equated Monthly Instalments" or "EMI" means and includes the amount of monthly payment required to repay the principal amount of the Facility and pay interest /other monies due and payable by the Borrower.
- (VII) "Facility" or "Loan" means the amount of the loan/financial assistance which is applied for and availed by the Borrower from ICICI Bank and as specified in the Application Form and set out in the KFS.
- (VIII) "Indebtedness" means the indebtedness of the Borrower at any time, in respect of monies borrowed, contracted or raised or liabilities of any nature contracted by the Borrower in any manner whatsoever (including under guarantees, indemnities, acceptance, credits, deposits, hire-purchase and leasing).
- (IX) "Material Adverse Effect" shall mean any event or circumstance which is likely to have an adverse effect on (i) the ability of the Borrower to perform or comply with any of the obligations under the Facility or the Standard Terms and Conditions; or (ii) prejudicial to businesses or financial condition of the Borrower or any obligor who is party to any Transaction Document.
- (X) "Material Terms" with respect to the Facilities, means the provisions relating to:-(i) the payment/repayment obligation (including principal, interest, fees,

charges) of the Borrower under the Facility; (ii) creation/perfection/furnishing of securities in terms of Transaction Documents; (iii) any credit support (including, without limitation, any guarantee or indemnity) provided / agreed to be provided in relation to the Facility (iv) compliance with financial covenants, security related covenants and information covenants; and (v) end use of the Facility.

- (XI) "Key Fact Statement" or "KFS" or "Most important Terms and Conditions" or "MITC" shall mean the most important terms of the Facility, including the loan amount, interest rate, Penal Charges, tenor, repayment schedule and other terms of the Facility. These terms may be communicated to the Borrower through email / short message services (SMS), web links, Website or by other means of physical or electronic communication.
- (XII) "Penal Charges" means an additional charge payable by the Borrower(s) to the Bank in case of breach of any Material Terms.
- (XIII) "Standard Terms and Conditions" shall mean the terms and conditions set out herein for the grant of the unsecured Personal Loans and Business Instalment Loans as amended/updated from time to time on the Website.
- (XIV) "Transaction Documents" include all writings and documents executed or to be executed by the Borrower or shared by ICICI Bank with the Borrower or any other person in relation to the Facility (whether entered into digitally or physically), including the Application Form, KFS/MITCs, welcome letter (if any), applicable Standard Terms and Conditions on the Website, as amended from time to time.

In the event of any disagreement or dispute between ICICI Bank and the Borrower regarding the materiality of any matter including of any event, occurrence, circumstance, change, fact, information, document, authorisation, proceeding, act, omission, claims, breach, default or otherwise, the opinion of ICICI Bank as to the materiality of any of the foregoing shall be final and binding on the Borrower.

3. FACILITY AND DISBURSEMENT

- (I) Amount of the Facility: The principal amount of the Loan applied for/availed by the Borrower shall be the amount specified in the Application Form and as set out in KFS.
- (II) Facility Disbursement: Once the Application Form submitted by the Borrower is accepted by ICICI Bank, the Loan will be disbursed into the Borrower's designated account. However, Borrower will have an option to cancel the Facility during the cooling off/look up period mentioned in the KFS, without any prepayment charges.
- (III) Mode of Disbursement: Upon the receipt of the Application Form, the Loan shall be disbursed in lump sum or in such instalments as ICICI Bank may decide. The term or tenure of the Loan shall be as specified at the time of applying for the Loan in the Application Form and as specified in KFS. The Borrower agrees that the approved amount of the Loan shall be disbursed only to account of the Borrower as specified in the Application Form or MITCs through cheque /demand draft, National Electronic Funds Transfer (NEFT)/ Real Time Gross Settlement (RTGS) or such other electronic fund transfer mode as ICICI Bank may deem fit. Disbursements of the Loan shall be

deemed to have been made on the date on which the Loan is disbursed by ICICI Bank and not on the date of the actual receipt of the relevant Loan amount by the Borrower. Interest on the Loan shall begin to accrue on and from the date of disbursement, irrespective of time taken for transit, realization or use of amount by the Borrower.

- (IV) Cooling off/Look-up Period: If the Borrower has availed Loan from the Portal/Platform and disagrees with any of the terms of Facility, the Borrower has an option to cancel the Facility within the time specified in KFS. Upon exercise of such option, the Borrower shall immediately repay the Loan amount and the Loan account will accordingly be cancelled. In the event the Loan amount was credited in any account maintained with ICICI Bank, the Loan amount will be debited from the said account maintained with ICICI Bank. The Borrower agrees that processing fee will not be refunded in case of such cancellation. All the rights under the Loan shall stand extinguished immediately on the cancellation of the Loan and successful repayment of the Loan.
- (V) Cancellation: ICICI Bank has the unconditional right to cancel the outstanding un-drawn commitments under the Facility at any time without prior notice to the Borrower.

4. RATE OF INTEREST

The Borrower shall be liable to pay interest on the Loan amount at the rate and on the date specified in the Application Form and as set out in the KFS ("Applicable Interest Rate"). Interest shall accrue from day to day and be calculated on the basis of the actual number of days elapsed and as may be decided by ICICI Bank at its sole discretion, which may be on the basis of 1/12 applied monthly or a year of 365 days irrespective of leap year. The rate of Interest payable by the Borrower shall be subject to changes, either upwards or downwards, based on Reserve Bank of India ("RBI") guidelines and/or directives, issued from time to time, that ICICI Bank is obliged to give effect to. All interest due and remaining unpaid on the Due Date shall be capitalised and added to the unpaid interest (including on unpaid Equated Monthly Instalment) on the Due Date and shall thenceforth carry interest at the applicable interest rate on a compounding basis payable on the aggregate amounts then due till the amount is paid/repaid.

5. PAYMENT, REPAYMENT, FEES AND CHARGES

- (I) Repayment: The Borrower shall repay the Loan and the interest payable thereon, to ICICI Bank, through EMI(s) on the Due Date as is specified in the Application Form and as specified in KFS. The Borrower acknowledges that EMI(s) includes interest payable on the outstanding Loan amount for the month in addition to the principal amount repayment. ICICI Bank shall be entitled to vary/modify the EMI (including increase in the amount of one or more EMI) in the event of changes to the interest rate on the Loan. For the purpose of payment/repayment of the EMI, the Borrower shall at all times maintain sufficient balance in their bank account to ensure that EMIs are received on Due Date by ICICI Bank.

(II) Manner of Repayment:

- (a) The Borrower may repay / pay the monies in respect of the Loan through National Automated Clearing House (NACH) / direct debit from the Borrower's account with ICICI Bank ('direct debit mandate' or 'Standing Instructions' (SI)/ Post-Dated Cheques (PDCs) /deduction from Borrower's salary / by directly paying amounts when due to ICICI Bank / by any other method, and as has been selected by the Borrower in the Application Form or as may be required by ICICI Bank (collectively referred to as "Payment Instructions"). Additionally, ICICI Bank may also accept payment through NEFT/RTGS and the Borrower can choose to avail such option when required to make payment towards the Loan account.
- (b) The Borrower may, subject to prior approval by ICICI Bank, be permitted to swap/ exchange the Payment Instructions issued to ICICI Bank with alternate payment Instructions /post-dated cheques drawn on another bank (as approved by ICICI Bank) subject to payment to ICICI Bank of the applicable Payment Instruction charges as specified in the Application Form/KFS.
- (c) If the Due Date in respect of any amounts payable in respect of the Facility falls on a day which is not a Business Day at the place where the payment is to be made, the immediately preceding Business Day shall be the Due Date for such payment.

(III) Realisation of EMI and Other Applicable Charges by ICICI Bank:

- (a) Notwithstanding anything contained in the Transaction Documents, upon any default by the Borrower in payment of amount on the Due Date pertaining to the Loan or any nonrealization of the amount on the Due Date by ICICI Bank, ICICI Bank shall be entitled, without prejudice to its other rights under the Transaction Documents, to present and/or re-present the Payment Instructions or payment instrument/mandates issued by the Borrower in favour of ICICI Bank in connection with the Loan.
- (b) If ICICI Bank faces any difficulty /impediments for any reason whatsoever in presenting / realizing such payments instructions or if ICICI Bank, in its sole discretion, require the Borrower to adopt or switch to any alternate mode of payment, the Borrower shall promptly replace Payment Instructions, without demur or delay and issue fresh Payment Instructions, mandates in lieu thereof to the satisfaction of ICICI Bank. The mandates given by the Borrower under any payment mode cannot be cancelled or revoked without the prior written consent of ICICI Bank. If the Borrower cancels or revokes such mandates without prior consent of ICICI Bank, then such acts of the Borrower shall be deemed as an Event of Default and ICICI Bank shall be entitled to initiate appropriate action, including legal proceedings against the Borrower.

- (IV)**Notwithstanding the mode of repayment/payment selected by the Borrower in the Application Form, the Borrower shall continue to remain at all times liable and responsible for ensuring the payment/repayment of all instalments and all other monies in respect of the Loan to ICICI Bank on or before the relevant Due Date(s) without any further notice/intimation being given by ICICI Bank. The acceptance by ICICI Bank of any payment which is less than the full EMI or other amounts due and owing at such time shall not constitute

a waiver of ICICI Bank's right to receive payment in full at such time or at any subsequent time or a waiver of any other rights whatsoever of ICICI Bank under the Facility.

- (V) The Borrower shall pay a one-time up-front non-refundable processing fee and administrative fee as specified in the Application Form and KFS which fee will be deducted by ICICI Bank at the time of disbursement of the Loan.

(VI) The Borrower agrees to pay all fees and charges as stipulated in the KFS. The Borrower further agrees that fees and charges specified in KFS may be revised by ICICI Bank from time to time, and may be updated on the Website and notified to the Borrower in advance.

- (VII) ICICI Bank is irrevocably authorized to debit the savings account of the Borrower maintained with ICICI Bank for the EMI amount as mentioned in the KFS/MITCs, and credit the relevant account of ICICI Bank over the entire tenure of the loan with effect from the date of disbursement of the Loan till the time the entire Facility is repaid. In the event that the savings account gets closed/transferred for any reason, the Borrower shall intimate ICICI Bank of their own accord of the new account opened with bank to debit the EMI amounts as per the Transaction Documents and shall not hold ICICI Bank liable for any charges that may be levied on account of such change in account not being communicated to ICICI Bank. Further, the Borrower undertakes to provide the fresh set of debit mandate and post-dated cheques for such new account, as per the Transaction Documents in lieu of existing instructions.

- (VIII) ICICI Bank shall be entitled, at the sole risk and cost of the Borrower/s, to engage one or, more person(s) to collect the Borrower/s' Dues and/or to enforce any security if provided by the Borrower/s, and ICICI Bank may (for such purposes) furnish to such person(s) such information, facts and figures pertaining to the Borrowers, the security and/or the Product(s) as ICICI Bank deems fit. ICICI Bank may also delegate to such person(s) the right and authority to perform and execute all acts, deeds, matters and things connected therewith, or incidental thereto, as ICICI Bank deems fit.

- (IX) Any amount of interest which is payable by the Borrower for the period from Loan / Facility disbursement date till commencement date of first Equated Monthly Instalments shall be added to and paid along with the first instalment.

6. PENAL CHARGES

- (I) Without prejudice to ICICI Bank's rights and remedies under contract and/or law, in the event any instalment or amount due under the Facility remains unpaid on the Due Date or the Borrower commits breach of any of the Material Term of the Facility, ICICI Bank shall have the right to levy and recover Penal Charges, at its sole discretion, at the rate specified in the Application Form and as set out in the KFS. Upon levy of such Penal Charges, the Borrower shall pay the said Penal Charges along with applicable Goods and Service Tax (GST), other taxes (of any description whatsoever), charges and penalties which may be payable pursuant to applicable laws, from time to time, in relation to the Facility.
- (II) The Borrower acknowledges and agrees that the Penal Charges are reasonable and commensurate to non-compliance of Material Terms of the Facility Agreement.

7. PREPAYMENT CHARGES

- (I) Subject to payment of prepayment fees/charges as specified in the KFS, the Borrower shall be entitled to prepay the Loan by giving such advance notice to ICICI Bank as has been set out in the MITCs. However, ICICI Bank shall not be liable to pay interest on account of such prepayment by the Borrower.
- (II) It is hereby clarified that the Borrower may pre-pay the Facility in part or in full, subject to the fees/ charges as specified in the KFS.

8. PURPOSE

The Borrower agrees that the Facility shall only be utilised for the purpose set out in the Application Form and for no other purpose. Under no circumstance shall the Facility be used, directly or indirectly for: (a) subscribing to or purchasing any shares or other securities; or (b) investment in the real estate business, capital markets or purchase of land; or (c) entering into any speculative transactions or activities; or (d) carrying out any activities not eligible for credit facility as per RBI guidelines; or (e) purchasing gold, gold bullion, gold jewellery, gold coins, units of gold exchange traded funds(ETF) and units of gold, mutual funds etc. or (f) any purpose that will violate any provisions of applicable law.

9. APPROPRIATION

The Borrower agrees, declare and confirms that notwithstanding any of the provisions of the applicable laws or any of the terms and conditions contained herein, any payment(s) shall unless otherwise agreed to by ICICI Bank in writing be appropriated in the following manner:

- (a) *Firstly*, towards costs, charges, expenses and other monies, due and payable to ICICI Bank;
- (b) *Secondly*, towards interest due and payable and / or accruing due and payable to ICICI Bank and
- (c) *Lastly*, towards repayment of the amount of any instalment(s) of the principal sums due and payable or becoming due and payable to ICICI Bank.

In the event the loan account is declared a non-performing asset (NPA), ICICI Bank may appropriate any payments made by the Borrower in its absolute discretion.

10. TAXES, LEVIES AND DUTIES

- (I) The Borrower shall bear and pay all imposts, costs, charges (including legal fees), and expenses, in any way incurred by ICICI Bank, and bear all stamp duties, registration charges, other duties, Goods and Service Tax (GST), other taxes (of any description whatsoever), charges and penalties, including any differential/additional duties and taxes which may be payable pursuant to applicable laws, from time to time, in relation to the Loan. In the event that the Borrower fails to pay any money referred above, ICICI Bank will be at liberty (but shall not be obliged) to pay the same on behalf of the Borrower.

The Borrower shall immediately reimburse all sums paid or expenses incurred by ICICI Bank in accordance with the provisions contained herein. All such sums shall be debited to the account of the Borrower and shall carry interest from the date of payment till such reimbursement is made, at the applicable interest rate as specified the KFS.

- (II) All payments by the Borrower under the Facility shall be made free and clear of, and without any deduction/withholding, except to the extent that the Borrower is required by law to make payment subject to any deduction/withholding of taxes. Provided that, all taxes required by law to be deducted/withheld by the Borrower from any amounts paid or payable, to ICICI Bank (including but not limited to the principal, interest, Penal Charges, commission, discount, service and other charges and any fees, under the Loan shall be paid by the Borrower when due, and the Borrower shall, within the statutory time frame prescribed under the law or within 30 days of the payment being made, whichever is earlier, deliver to ICICI Bank satisfactory evidence that the tax has been duly remitted to the appropriate authority and tax deduction certificates delivered to ICICI Bank.

11. REPRESENTATIONS AND WARRANTIES

The Borrower represents and warrants that:

- (I) The Borrower (and/or its authorized signatory/officer) has/have the full capacity, power and authority including due authorizations or approvals as required by any law or contract or constitutional documents governing the Borrower) to avail the Loan and to enter into and perform his/her/its obligations under the Transaction Documents and that the Borrower will, at all times, keep all such authorisations or approvals valid and subsisting till the amounts due to ICICI Bank are repaid/paid in full;
- (II) The availing of the Loan and/or the performance by the Borrower of its obligations under the Transaction Documents does not: (i) contravene any applicable law, judgement or decree to which the Borrower is subjected, (ii) conflict or result in any breach of any of the terms of or constitute default of any covenants, conditions and stipulations under any existing agreement to which the Borrower is a party, or (iii) conflict or contravenes any provision of the memorandum and articles of association or constitutional documents of the Borrower;
- (III) All the information and documents, including, income details, financial statement, constitutional documents, business details, Goods and Services Tax (GST) account number or Permanent Account Number (PAN), Know Your Customer (KYC) documents which are submitted physically and/ or uploaded on the Portal are true and accurate;
- (IV) In no event shall ICICI Bank be liable to the Borrower for any special, incidental, indirect, punitive or consequential damages whatsoever (including, without limitation, damages of loss of goods or services, or any other pecuniary loss) arising out of the use of, or inability to use or access the Loan, including breach of contract or warranty, negligence or other tortious action, or any other claim arising out of the Borrower use of or access to the Loan.
- (V) There is no Material Adverse Effect;
- (VI) The Borrower is solvent and/or has not stopped paying any of his/her/its debts as they fall due;

- (VII) The Borrower's name has not been included in the RBI's wilful defaulters list; and
- (VII) Except to the extent disclosed, (a) no director or *senior officer* of ICICI Bank is a director, partner, manager or employee of the Borrower and the Borrower is in compliance with all applicable laws including RBI's '*Master Circular on Loans and Advances*' as amended from time to time; (b) no director or *senior officer* of ICICI Bank is a guarantor for the Borrower, and (c) the Borrower is not a *relative* of a chairman, managing director or director of banking company (including ICICI Bank) or of any subsidiaries or trustees of mutual funds/venture capital funds set up by a banking company (including ICICI Bank) or a *relative* of a *senior officer* of ICICI Bank. The terms used herein including '*senior officer*' or '*relative*' shall have the meaning ascribed to them by RBI in its master circular.

12. COVENANTS

- (I) The Borrower shall promptly:
 - (a) Observe and perform all its obligations and covenants under the Transaction Documents, including the payment/re-payment of the Borrower's Dues on each relevant Due Date.
 - (b) Notify ICICI Bank of the occurrence of any event or the existence of any circumstances, which results in any of the statements set out in the Transaction Documents becoming untrue or incorrect in any respect.
 - (c) Deliver to ICICI Bank such information and records including of any business, operations and assets as may be required by ICICI Bank from time to time in relation to the Loan and within the period specified by ICICI Bank. *In the event of any change* in KYC details, the Borrower shall inform and submit updated documents (i.e., address, contact details, profile etc.) to ICICI Bank within 30 days from the date the change was made.
 - (d) Notify ICICI Bank of any action or steps taken or any insolvency or bankruptcy proceedings started against the Borrower including but not limited to the appointment of a receiver, administrator, liquidator, trustee or resolution professional in relation to the Borrower or the assets of the Borrower.
 - (e) Notify ICICI Bank of any litigation, arbitration, administrative or other proceedings initiated or threatened against the Borrower or his/her/its assets.
 - (f) Notify ICICI Bank of occurrence of an Event of Default or any circumstances and conditions which have or may have a Material Adverse Effect.
 - (g) Notify ICICI Bank in writing with full details of changes in the address of any of the Borrower office, or place of business, residence, employment, profession or employment status.
 - (h) Do all such things and execute all such writings as ICICI Bank may require from time to time for duly or more perfectly securing the repayment of the Loan.
 - (i) In the Event of Default (if required by ICICI Bank), the Borrower agrees and undertakes to provide and furnish to ICICI Bank to their

satisfaction, such security as required to secure ICICI Bank; failure of the Borrower to do so shall be termed as an Event of Default.

- (j) notify ICICI Bank upon being declared a wilful defaulter.
 - (k) in compliance with the rule 9B of the Prevention of Money Laundering (Maintenance of Records) Rules, intimate ICICI Bank if there is any change in Borrower's KYC details along with updated documents (i.e. address, contact details, profile, etc.) within a period of 30 days from the date the change was made. Once you intimate us, we will make necessary changes in our records. Any update can be intimated to the Bank through RIB/ iMobile/ Branch.
- (II) A Borrower that is constituted as a commercial or business entity (including as a company, one-person company, partnership firm, trust, limited liability partnership firm) shall promptly:
- (a) Notify ICICI Bank in writing, with full details, with respect to any material change in the management of the business of the Borrower or any change taking place in the ownership or control of the Borrower whereby the effective beneficial ownership or control of the Borrower will change.
 - (b) Deliver to ICICI Bank, in form and manner satisfactory to ICICI Bank: (i) audited accounts within such reasonable time from the close of the financial year as may be permitted by ICICI Bank; (ii) such other statement or statements or information pertaining to the operations or business of the Borrower as ICICI Bank may require in the context of the said Loan; and (iii) All notices or other documents issued by the Borrower to its creditors.
 - (c) The Borrower covenants and undertakes that so long as the amounts due under the Loan are outstanding and until the full and final payment of all money due thereunder, it shall not without the prior consent of ICICI Bank (which shall not be unreasonably withheld): (i) change or alter its capital structure; (ii) effect any merger, demerger, amalgamation, corporate reconstruction or compromise with its creditors or shareholders; (iii) change its constitutional documents in a manner adversely affecting ICICI Bank and /or the Borrower's performance under the Facility and the Standard Terms and Conditions.
 - (d) The Borrower hereby further covenants and agrees that in case of an Event of Default, without prior written approval of ICICI Bank, the Borrower shall not: (i) declare dividend or distribute profits; (ii) make any investment in any concern or provide any credit or give any guarantee, indemnity or similar assurance in connection with the obligation of any person other than itself; (iii) redeem, purchase, buyback, retire or repay any of its share capital; (iv) change its financial year end or change the accounting method or policies, unless required by law; (v) avail of any additional/ new credit facility or accommodation from any bank(s) or financial institution(s); (vi) pay any commission to its promoters, directors, managers or other persons for furnishing guarantees, counter guarantees or indemnities; (vii) pay any compensation to its promoters or directors in the event of loss of office for any reason whatsoever.
- (III) The Borrower:

(a) agrees that the Bank may suspend usage of the sanctioned limits in the event the Borrower is declared a wilful defaulter under the applicable RBI regulations and guidelines.

(b) shall, at its own expense, allow ICICI Bank to appoint auditors (or award a separate mandate to the Borrower's auditors), chartered accountants, cost accountants, forensic experts or other consultants for carrying out concurrent or special audit or examination of the Borrower, where such audit or examination is required to be conducted pursuant to regulatory requirements.

(c) shall not induct a person identified as wilful defaulter in any capacity where such a person is on its board or is in charge and responsible for the management of its affairs. In the event the person so inducted is found to be wilful defaulter, the Borrower shall take immediate steps for removal of such persons.

13. EVENTS OF DEFAULT

(I) The following acts, as set out below, shall each constitute an "Event of Default" by the Borrower of the Facility and /or Standard Terms and Conditions:

(a) Default has occurred in the payment of any monies (whether for principal or interest or otherwise), in respect of the Loan on the Due Dates, whether at stated maturity, by acceleration or otherwise;

(b) The Borrower defaults in the performance of any of the terms of the Loan and/ or Transaction Documents;

(c) Any information, representation, warranty, declaration or confirmation under the Standard Terms and Conditions or any information provided to ICICI Bank has been found to be false, incomplete, misleading or fraudulent;

(d) The Borrower is unable or has admitted in writing its inability to pay any of its Indebtedness as they mature or when due;

(e) The Borrower has, or might, become the subject of proceedings under any bankruptcy or insolvency law; or becomes bankrupt or insolvent; or has taken any action for insolvency or bankruptcy; or an administrator, trustee, bankruptcy trustee or resolution professional in relation to the Borrower or the assets of the Borrower; or any of the assets of the Borrower have been attached for the recovery of any dues from the Borrower; or any judgement or decree has been rendered against the Borrower;

(f) It has become unlawful for the Borrower or ICICI Bank to perform any of their respective obligations under the Loan and / or the Standard Terms and Conditions;

(g) The Borrower is likely to be unable repay the Loan or any monies under the Loan and/ or Standard Terms and Conditions or any part thereof as they mature or when they become due;

(h) The Borrower has defaulted under any other agreement relating to any Indebtedness of the Borrower or any other lenders to the Borrower have recalled their loans or any part thereof;

(i) There has occurred, in the sole opinion of ICICI Bank, a Material Adverse Effect; or

(j) The demise of any Borrower;

- (k) The Borrower compounds with her/its creditors or permits any attachment or sequestrations or other processes against any of her/its assets or properties.
- (II) The decision of ICICI Bank as to whether or not an Event of Default has occurred shall be final and binding upon the Borrower.
- (III) The Borrower hereby confirms that he/she has fully understood and acknowledges the consequences of an Event of Default, as well as ICICI Bank's rights and remedies thereupon, as set out under the Transaction Documents.
- (IV) Promptly upon becoming aware of the existence of an Event of Default, the Borrower shall notify ICICI Bank in writing thereof and shall inform ICICI Bank of the steps, if any, being taken to remedy it. In such event, ICICI Bank may, by a notice in writing to the Borrower and without prejudice to any other rights and remedies available to it, call upon the Borrower to pay the Borrower's Dues.
- (V) Upon the occurrence of the Event of Default and at any time thereafter, if any such event shall be continuing, ICICI Bank may, in its sole discretion:
 - (a) declare that the principal and all accrued interest on the Loan and all amounts under the Facility and/ or Transaction Documents have become payable forthwith by the Borrower to ICICI Bank and upon such declaration the same shall become due and payable forthwith;
 - (b) exercise such other rights and remedies as may be available to ICICI Bank under law including by suit, in equity or by action at law, or both, or otherwise; and/or
 - (c) stipulate such other condition or take such other action as ICICI Bank deems fit.

14. PUBLICATION OF DEFAULT

- (I) In the event of a default by the Borrower of any of the terms of the Transaction Documents, ICICI Bank and the RBI (or any agency approved or authorised by RBI or other governmental authority) will have the right to disclose and publish the details of such default along with the name of the Borrower as defaulters in such manner and through such media as ICICI Bank and/or the RBI (or any agency approved or authorised by RBI or other governmental authority) may, in their absolute discretion, think fit.
- (II) In the event that the Borrower chooses to use internet banking, e-commerce, mobile/phone banking facilities of ICICI Bank, such usage shall be subject to the privacy commitment displayed on the Website and all terms and conditions, as amended from time to time, available on the platform governing the same.

15. LIEN AND SET-OFF

- (I) Without prejudice to any rights of ICICI Bank, ICICI Bank shall have a paramount lien and right of set-off against all monies of the Borrower standing to the credit of the Borrower in any account(s) (including fixed deposit) of the Borrower with ICICI Bank, whether held singly or jointly, and on any monies, securities, bonds and other assets, documents and properties held by /under the control of ICICI Bank and the Borrower authorises ICICI Bank to debit the account(s) of the Borrower with ICICI Bank or to apply any

credit balance to which the Borrower is entitled on any account of the Borrower with ICICI Bank in satisfaction of any sum, whether for principal or interest or otherwise due and payable by the Borrower to ICICI Bank under the Loan and/ or Standard Terms and Conditions.

- (II) Nothing herein contained shall prejudice or adversely affect any general or special lien or right to set-off to which ICICI Bank is or may by law or otherwise be entitled or any rights or remedies of ICICI Bank including in respect of any present or future security, guarantee, obligations of the Borrower.
- (III) The Borrower further agrees that in addition to and without prejudice to any other right or lien enjoyed by ICICI Bank, ICICI Bank will further be entitled at any point of time and without notice to the Borrower to combine or consolidate all or any of the Borrower's accounts (including any fixed deposits) held with ICICI Bank and all the credits and liabilities therein and set off or transfer any sum standing to the credit of any one or more of such accounts in or towards satisfaction of any of the Borrower's liabilities to ICICI Bank on any account whatsoever, whether such liabilities are actual or contingent, primary or collateral and whether joint or several.

16. DEATH OR INSOLVENCY

The Borrower's Dues shall not be revoked, cancelled or otherwise affected by the death or insolvency or bankruptcy of the Borrower and, so long as the whole or any part of the Borrower Dues remains payable to bank, ICICI Bank shall be entitled to act upon and enforce all of its rights pursuant to, and in accordance with, the Standard Terms and Conditions against the estate or assets of the Borrower.

17. DISCLOSURE OF INFORMATION

- (I) The Borrower agrees and accepts for the disclosure by ICICI Bank of all or any information and data relating to the Borrower, the Loan, the Borrowers account, and the Transaction Documents (*including but not limited to information relating to default, if any, committed by the Borrower, in the discharge of the Borrower's obligations*) as ICICI Bank may deem appropriate to the RBI and/or to the Credit Information Bureau (India) Limited and/or to any other agency authorized in this behalf by RBI, to its professional advisers or consultants and to its service providers, third party or otherwise, instructed by ICICI Bank in relation to the Loan or Transaction Documents, and/or as required under law or any applicable regulation, at the order of a court of law, or at the request or order of any statutory, regulatory or supervisory authority with whom it customarily complies.
- (II) The Borrower declares that the information furnished and to be furnished to ICICI Bank are and shall be true and correct.
- (III) The Borrower:
 - (a) accepts that RBI or the Credit Information Bureau (India) Limited and any other agency so authorized, any statutory, regulatory or supervisory authority, may use, process, disseminate the said information and data disclosed by ICICI Bank in such manner as deemed fit by them in any particular circumstances; and
 - (b) shall not hold ICICI Bank at all responsible or liable in this regard.

(IV) ICICI Bank shall, as it may deem appropriate and necessary, be entitled to disclose all or any: (i) information and data relating to the Borrower; (ii) information or data relating to the Facility, its terms, Transaction Documents; (iii) obligations assumed / to be assumed by the Borrower/s in relation to the Facility under the Transaction Documents; (iv) default, if any, committed by the Borrower/s in discharge of the aforesaid obligations, to Credit Information Companies ("CICs") and any other agency authorized in this behalf by the RBI. CICs and / or any other agency so authorised may use and/or process the aforesaid information and data disclosed by ICICI Bank in any manner as deemed fit by them. CICs and/or any other agency so authorize may furnish for consideration, the processed information and data or products thereof prepared by them, to ICICI Bank/ financial institutions and other credit grantors or registered users, as may be specified by ICICI Bank in this behalf. All information and data furnished by the Borrowers to ICICI Bank from time to time shall be true and correct.

18. SERVICE PROVIDER

It is agreed by the Borrower, that without prejudice to any rights of ICICI Bank, all acts / steps as are necessary for ICICI Bank to take in order to monitor the Loan and its utilisation and/or the obligations of the Borrower and /or the Borrower's compliance with the terms hereof and / or to recover amounts due to ICICI Bank or any part or portion thereof, shall and/or may be carried out by and / or through such other person (including a company or body corporate) as may from time to time be appointed by ICICI Bank in respect thereof and that ICICI Bank will at all times be entitled to share with any such other person that may thus be appointed by ICICI Bank, all documents statements of accounts and other information of whatsoever nature pertaining to the Borrower and/or the Loan. Further, the Borrower expressly recognises and accepts that ICICI Bank shall, without prejudice to its rights to perform such activities either itself or through its officers or servants, be absolutely entitled and have full power and authority to appoint one or more third parties of ICICI Bank's choice and to transfer or delegate to such third parties the right and authority to collect on behalf of ICICI Bank all unpaid amounts and to perform and execute all acts, deeds, matters and things connected therewith or incidental thereto including attending the office or residence of the Borrower, receiving the amounts due, and generally performing all lawful acts as the third party may consider appropriate for such purposes.

19. INDEMNITY

- (I) The Borrower shall indemnify ICICI Bank from and against any and all expenses, loss, damage or liability which it may incur in connection with the Loan and/ or the Standard Terms and Conditions or the transactions contemplated by the Standard Terms and Conditions and/or for the recovery of the Borrower's Dues (including as a consequence of the occurrence of any Event of Default). Such indemnity shall extend to any interest, fees, premium, costs, charges or expenses or any other sums paid or payable in relation to the Loan or its recovery.
- (II) The Borrower further agrees to indemnify and keep indemnified ICICI Bank from and against any and all claims, damages, costs, losses, expenses, suits,

proceedings, actions or liabilities, whatsoever arising in connection with or relating to any communication sent/received by ICICI Bank by electronic means such as email, facsimile, text messaging or the Website or through its mobile phone-based application or via the Portal/Platform.

20. Governing Law and Dispute Resolution

The Standard Terms and Conditions shall be governed by and in accordance with the laws of India.

Any claim or dispute whatsoever (whether in contract, tort or otherwise) arising out of or in connection under the terms of facility, including any question regarding its construction, meaning, existence, validity, breach, recall, recovery or termination, shall be resolved and settled by mediation or conciliation (if the Borrower and ICICI Bank agree to such mediation or conciliation), administered in accordance with the applicable mediation or conciliation rules of an independent online dispute resolution institution listed on the Website ("[ODR Institutions](#)"). Any party may appoint any listed ODR Institutions to facilitate mediation or conciliation. If one Party appoints an ODR institution before the other, the ODR institution appointed by the first Party shall be binding on other party. If the Borrower and ICICI Bank do not agree to mediation or conciliation, or if the mediation or conciliation fails to resolve the claim or dispute within the period stipulated in such rules or within a period of 21 days from the date of notice of appointment of mediator or conciliator (whichever is earlier), then the claim or dispute shall be taken forward for adjudication by arbitration in terms of the applicable rules of said ODR Institution, and in accordance with the Arbitration and Conciliation Act, 1996, which shall be conducted (including for recording of evidence or tendering of documents), concluded and administered online by ODR Institution through its website/platform or mobile application. The arbitral tribunal shall consist of an independent sole arbitrator appointed in accordance with the applicable arbitration rules of the ODR Institution. The seat of arbitration proceedings shall be Mumbai. The law governing the arbitration proceedings shall be Indian law. The procedural law of arbitration shall be rules of ODR Institution.

21. MISCELLANEOUS

(I) Assignment and Risk Participation:

- (a)** The Borrower shall not assign or transfer all or any of its rights, benefits or obligations under the Unsecured Loan and the Standard Terms and Conditions. ICICI Bank shall be free to assign, transfer, novate, securitise the Loan and/or any of its rights and obligations under the Unsecured Loan and these Standard Terms and Conditions without the consent of or notice to the Borrower, and the Borrower agrees to execute any document or provide any confirmation in any form manner or substance that ICICI Bank may require to give effect to such assignment, transfer or novation.
- (b)** Without prejudice to any of these Standard Terms, ICICI Bank may (at its sole discretion, without notice to the Borrower/s) share the credit risk of the whole or a part of the Facility with any other person by way of participation. Notwithstanding such participation, all rights, title, interests, special status and other benefits and privileges enjoyed or held

by ICICI Bank under the Transaction Documents shall remain valid, effective and enforceable by ICICI Bank as per the Transaction Documents. The Borrower/s shall continue to discharge their obligations under the Transaction Documents to ICICI Bank. The Borrower/s shall not have and claim privity of contract with such person on account of any reason whatsoever.

- (II) Notices: All notices or other communications under the Standard Terms and Conditions shall be given in writing and, unless otherwise stated, may be sent by email, in-app messages, SMS/text messaging, WhatsApp messaging services, ordinary post, speed post or courier. Any such notice or other communication will be deemed to be effective: (i) if delivered in person, at the time of such delivery; (ii) if dispatched by post or courier, when recall of the letter is outside the control of the sender; (iii) if sent by email, when such email enters the sent items folders; and (iv) if sent by in-app messages/SMS/text messaging/WhatsApp messaging services, when have been sent irrespective of any telecom service provider delay. No notice or communication to ICICI Bank shall be effective unless actually received and acknowledged by Bank. Notices or communication made to: the Borrower postal address or email address or mobile number, as specified in the MITC, and shall be deemed to be proper and sufficient service irrespective of whether or not such notice shall be returned "unserved", unless the Borrower has duly notified ICICI Bank in writing of any changes to the address, email or mobile number. The Borrower agrees to assume the entire risk of non-delivery by reason of any electronic error, telecom service provider error or otherwise.
- (III) Severability: Any provision of the Standard Terms and Conditions which are prohibited or unenforceable in any jurisdiction shall, as to such jurisdiction, be ineffective to the extent of the prohibition or unenforceability but that shall not invalidate the remaining provisions of the Standard Terms and Conditions or affect such provision in any other jurisdiction.
- (IV) Waiver: No delay in exercising or omission to exercise any right, power or remedy accruing to ICICI Bank under the Terms and Conditions shall impair any such right, power or remedy or shall be construed to be a waiver or acquiescence thereof. The rights of ICICI Bank under the Standard Terms and Conditions are cumulative and not exclusive of their rights under general law and may be waived only in writing and specifically and at ICICI Bank sole discretion.
- (V) Amendment: ICICI Bank has the absolute discretion to amend or supplement any of the Standard Terms and Conditions at any time (including if arising or occasioned by any change in RBI guidelines or directives from time to time) and will endeavor to give a prior notice of 15 Business Days by email or by notice on its Website or via its mobile-based application wherever feasible. Such amendments will apply to and be binding on the Borrower in terms of such amendments/supplements.
- (VI) Joint and Several Liability: The Borrower's liability for repayment of the Borrower's Dues shall, in cases where more than one Borrower have jointly applied for the Facility, be joint and several. If the Borrower is an individual doing business as a sole proprietary concern, the Borrower shall be solely responsible for the liabilities of the aforesaid concern and will be personally liable for making repayment / payments of all amounts in respect of the Facility to ICICI Bank.

(VII) Grievance Redressal Mechanism: ICICI Bank follows a three level grievance redressal mechanism that is available on the website of the Bank. For details, please visit our website www.icicibank.com and navigate to - Home > Contact Us > Queries/Complaints.
